

**Law & Motion
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15. 9:00 AM CASE NUMBER: C24-02654

CASE NAME: MIU FONG VS. ANGELA LEUNG

***HEARING ON MOTION IN RE: FOR ORDER TO PERMIT SERVICE OF DEFTS ANGELA KIT-HING LEUNG
AND SAMUEL NG BY PUBLICATION**

TENTATIVE RULING

Plaintiffs seek an order to permit service of defendants by publication. The motion is denied.

Plaintiffs declare that the persons to be served have a private mailbox at a commercial mail receiving agency (CMRA).

Section 17528.5(d)(1) of the Business & Professions Code provides:

Every person receiving private mailbox receiving service from a CMRA in this state shall be required to sign an agreement, along with a USPS Form 1583, which **authorizes the CMRA owner or operator to act as agent for service of process** for the mail receiving service customer. **Every CMRA owner or operator shall be required to accept service of process for and on behalf of any of their mail receiving service customers**, and for two years after termination of any mail receiving service customer agreement. Upon receipt of any process for any mailbox service customer, the CMRA owner or operator shall (A) within 48 hours after receipt of any process, place a copy of the documents or a notice that the documents were received into the customer's mailbox or other place where the customer usually receives his or her mail, unless the mail receiving service for the customer was previously terminated, and (B) within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer. The CMRA shall obtain a certificate of mailing in connection with the mailing of the documents. Service of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing.

If the CMRA owner or operator has complied with the foregoing requirements and provides to any party participating in a lawsuit involving a mail receiving service customer a declaration of service by mail, given under penalty of perjury along with a certificate of mailing, the CMRA owner or operator shall have no further liability in connection with acting as agent for service of process for its mail receiving service customer.

Plaintiffs have a method of serving the defendants other than publication and the request for publication is denied.